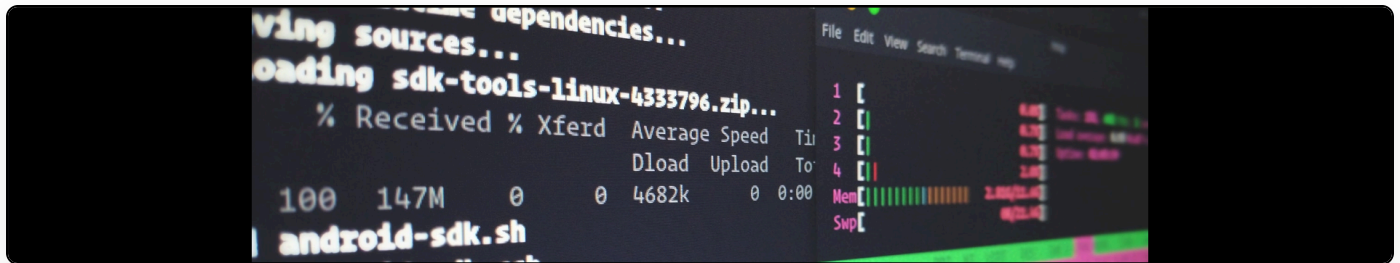


Dropbox: you've missed the real problem

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So, here's a short post on the Dropbox problem. I'm sure others have picked up on this aspect, but it merits further coverage. Yesterday, I tweeted at Dropbox stating my belief that the terms and conditions they are trying to enforce are, in fact, untenable.

Their response was to send me back a link to [this article](#), which calls those questioning the copyright license terms as "bozos". Thanks, Dropbox, but I think it's probably not a good idea to call your users bozos. Secondly, you've still absolutely and utterly missed the point.

 Copyright

This is best demonstrated through an example and unpicking the terms. Dropbox's [new terms and conditions](#) require you to give, to Dropbox, on any items you store, the:

worldwide, non-exclusive, royalty-free, sublicenseable rights to use, copy, distribute, prepare derivative works (such as translations or format conversions) of, perform, or publicly display that stuff to the extent reasonably necessary for the Service. This license is solely to enable us to technically administer, display, and operate the Services

Ok, so there was much FUD circulated about this; the qualifying clause "to the extent reasonably necessary for the Service" probably means they wouldn't get away with appropriating your material.

There is a far more worrying clause, though: "You must ensure you have the rights you need to grant us that permission." Yep, you read that right. If you don't hold the rights needed to grant permission, you can't store the file on Dropbox.

Now the example.

James publishes an article in a journal. This article is copyrighted. Through my institutional journal subscription, I am given a license to store copies of this file for my own use. The copyright is still held by the originator or the publisher, but I am given a **license**. The same would also be true of any legal music downloads.

Clearly, I do not have the valid legal authority to store a copy of this file on Dropbox. I do not "hold the rights needed" to grant a license to Dropbox in the terms they are demanding.

Furthermore, this is utterly ridiculous. The link they provided me (yes, I am *such* a bozo!) claims the clause is to make "sure that some litigious jackass doesn't sue the vendor over doing what's necessary for a web app to exist". Well, I'm sorry to tell you but, in this case, that's not going to help you Dropbox! If I told my hypothetical friend, Liz, that she could take James' article and distribute it at will, I would, of course, be in trouble for copyright violation. However, Liz would also be in violation for any copies she made because she didn't have permission to do so anyway, regardless of the fact that I said she did. Dropbox is, for all purposes, my friend Liz here.

In short: I am not a lawyer, but it seems that the same should be said about the people responsible for Dropbox's terms and conditions. The company is also rude and ill-informed. I'm going elsewhere with my storage and, by elsewhere, I mean on a private server where I can control the security, privacy and terms on which I use it.

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